

Master Service Agreement Kirby and Sons — McKesson Corporation

Supplier:	Kirby and Sons	Supplier ID:	S00016
Document Type:	Master Service Agreement	Effective Date:	January 1, 2024
McKesson Entity:	McKesson Corporation	Expiration Date:	December 31, 2026
Document Status:	Active — Fully Executed	Classification:	Confidential
Supplier HQ	Allisonland, FL		

1. SCOPE AND PURPOSE

This Master Service Agreement ("Agreement") is entered into between McKesson Corporation ("McKesson") and Kirby and Sons ("Supplier"), a provider of Facilities & Hospitality Services services. This Agreement governs all services, projects, and work orders executed between the parties during the term.

2. PAYMENT TERMS

2.1 Standard Payment Terms

McKesson shall pay all undisputed invoices within **Net 45 calendar days** from receipt of a valid invoice that meets the invoicing requirements set forth in Section 6.

2.2 Early Payment Discount

A discount of **2.0%** will be applied to the invoice total if McKesson remits payment within **10 calendar days** of invoice receipt (2.0/10 Net 45).

2.3 Late Payment Penalty

If McKesson fails to pay an undisputed invoice within **61 calendar days** from invoice receipt, a late payment fee of **1.5% per month** on the overdue balance will accrue from the 61th day forward.

2.4 Invoice Requirements

All invoices submitted by Kirby and Sons must reference the applicable Purchase Order number, Statement of Work number, cost center code, and McKesson project manager name. Non-compliant invoices will be returned within 5 business days.

3. TERM AND RENEWAL

The initial term of this Agreement is two (2) years commencing January 1, 2024. This Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least 90 days prior to the end of the then-current term.

4. TERMINATION

4.1 Termination for Convenience: McKesson may terminate this Agreement or any Statement of Work for convenience upon **90 days** written notice to Kirby and Sons.

4.2 Termination for Cause: Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within 30 days of written notice.

5. DATA SECURITY AND PRIVACY

5.1 Kirby and Sons shall maintain SOC 2 Type II certification throughout the term of this Agreement and provide McKesson with audit reports upon request.

5.2 In the event of a data security breach affecting McKesson data, Supplier must notify McKesson's Chief Information Security Officer within 24 hours of discovery.

6. SUBCONTRACTING

6.1 Kirby and Sons may not subcontract any portion of the services to third parties without prior written approval from McKesson's designated procurement manager.

6.2 Approved subcontractors must execute McKesson's standard subcontractor agreement and are bound by the same data security obligations as Supplier.

7. INTELLECTUAL PROPERTY

All work product, deliverables, and materials created specifically for McKesson under this Agreement shall be considered works made for hire and shall be the exclusive property of McKesson.

8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of law provisions.

SIGNATURE PAGE

McKesson Corporation

Authorized Signature: _____

Name: _____

Title: _____

Date: _____

Kirby and Sons

Authorized Signature: _____

Name: _____

Title: _____

Date: _____